

26STCP00554 26STCP00554

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 26STCP00554 Hearing Date: July 2, 2026 Dept: 407

Tentative

Ruling

Judge

Brock T. Hammond, Department 407

HEARING DATE: July 2, 2026 TRIAL DATE: N/A

CASE: Mobilias Insurance Company of Arizona

v. Ethmadalage Amitha Herbert Perera

CASE NO.: 26STCP00554

MOTION TO COMPEL RESPONDENT ETHMADALAGE

AMITHA HERBERT

PERERA'S RESPONSES TO PETITIONER'S FORM INTERROGATORIES,
SPECIAL INTERROGATORIES, REQUESTS FOR PRODUCTION OF DOCUMENTS, REQUEST FOR ADMISSIONS
AND REQUEST FOR SANCTIONS

MOVING PARTY: Petitioner

Mobilias Insurance Company of Arizona

RESPONDING

PARTY: No opposition

I. BACKGROUND

On February 6, 2026, Petitioner, Mobilitas Insurance Company of Arizona, filed a petition to open unlimited civil court file to establish jurisdiction over an uninsured motorist arbitration with Respondent, Ethmadalage Amitha Herbert Perera.

On March 2, 2026, Petitioner filed these motions to compel Respondent's responses to Petitioner's first set of Form Interrogatories, Special Interrogatories, and Requests for Production of Documents, and a motion to deem admitted the truth of the facts and genuineness of documents in Petitioner's first set of Requests for Admissions. Petitioner requests sanctions against Respondent and its counsel of record.

The motions are unopposed.

II. LEGAL STANDARD

If a party to whom interrogatories and inspection demands were directed fails to serve a timely response, the propounding party may move for an order to compel responses without objections. (Code Civ. Proc., §§ 2030.290(b), 2031.300(b).) If a party to whom requests for admission are directed fails to serve a timely response, the propounding party may move for an order that the truth of the matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280(b).) Failure to timely serve responses waives objections to the requests. (Code Civ. Proc., §§ 2030.290(a), 2031.300(a), 2033.280(a).) A party moving to compel discovery responses under these statutory provisions is not required to meet and confer prior to filing the motion. (See Code Civ. Proc., §§ 2030.290(b), 2031.300(b); see also *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 [citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 906 for the proposition that "meet and confer" requirement "did not apply when propounding party sought order compelling responses to interrogatories and sanctions for responding party's failure to respond 'within the statutorily permitted time'"].) ¶¶¶¶¶

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Monetary Sanctions ¶

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Code of Civil Procedure section 2030.030 is a general

statute authorizing the Court to impose discovery sanctions for “misuse of the discovery process,” which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. (Code Civ. Proc., § 2023.010.)

If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction.

If the court finds that a party has unsuccessfully made or opposed a motion to compel responses, the court “shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290(c), 2031.300(c).) With respect to untimely responses to admissions requests, sanctions are mandatory. (Code Civ. Proc., § 2033.280(a).)

III. DISCUSSION

Petitioner moves the court for an order compelling Respondent to provide responses to Defendant’s first set of Form Interrogatories, Special Interrogatories, and Requests for Production of Documents, and to deem admitted the Requests for Admission, Set One, against Respondent.

It is undisputed that Petitioner properly served Respondent with the at-issue discovery requests on November 21, 2025. (See Jackson Decls., ¶ 1, Exs. A.) Despite providing extensions to respond to discovery, Respondent has not served responses. (Jackson Decls., ¶¶ 3-8.) Accordingly, all objections to the discovery requests are waived. Petitioner is entitled to an order compelling responses to the interrogatories and inspection demands and deeming the admissions requests

as admitted against Respondent.

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¿Monetary Sanctions¿¿¿

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Petitioner request sanctions against Respondent.¿ Given the court's ruling, sanctions are warranted.¿ Accordingly, sanctions are imposed against Plaintiff in the lower amount of \$1,400.00, consisting of four hours at counsel's hourly rate.¿¿¿¿

IV. CONCLUSION

The unopposed motions are GRANTED. Respondent is ordered to provide verified, objection-free responses to Petitioner's first set of Form Interrogatories, Special Interrogatories, Requests for Production of Documents within 30 days of this order.¿¿Petitioner's Request for Admissions, Set One, is deemed admitted against Respondent.

Petitioner's request for sanctions is GRANTED.¿ Respondent is ordered to pay sanctions in the sum of \$1,400.00 within 30 days of the date of this order.¿

Petitioner to give notice, unless waived.

Dated: July 2,
2026

Brock T. Hammond

Judge of the
Superior Court